IN THE DISTRICT COURT HELD AT ABURI, EASTERN REGION, ON MONDAY, THE 23RD DAY OF JUNE, 2025, BEFORE HER WORSHIP BIANCA GYAMERA-BEEKO SITTING AS AN ADDITIONAL MAGISTRATE

COURT CASE NO: ER/AB/DC/A1/8/2024

ERIC OBUOBI

VRS

1. **DAVID ASARE BAAH**
2. **SB BUSINESS VENTURES**

KWASI BAAFI NKRUMAH FOR THE PLAINTIFF

SAMUEL KOTEY AMASA HOLDING THE BRIEF OF HOPE AGBOADO FOR THE DEFENDANTS

JUDGMENT

The Plaintiff in this matter is a lotto writer for the 2nd Defendant company. He resides at Aburi. The 1st Defendant is a lotto agent. He lives at Adukrom and works at Aburi. The 2nd Defendant company is the employer of 1st Defendant.

According to the Plaintiff, on 18th June 2024, one Stephen Osaabo staked lotto numbers 60-71 with him. Per the terms and conditions governing the lottery, a person who stakes lotto of GHS50 and wins is entitled to receive from the company GHS12,000. The lotto writer receives a commission of GHS2,000, and the winner takes GHS10,000. Fortunately for Stephen Osaabo, he won the lottery that day but all efforts to get the Defendants to pay the money due him have failed. Consequently, on 26th September, 2024, the Plaintiff issued a writ against the Defendants seeking the following reliefs:

1. Recovery of GHS12,000 being money won by the Plaintiff from a lottery
2. Interest on the said amount
3. Cost.

On 10th October, 2024, the 1st Defendant pleaded not liable to the claims. Subsequently, a statement of defence was filed for the Defendants by their lawyer.

The issue for determination by this court is:

1. Whether the Defendants are liable for the payment of GHS12,000 to the Plaintiff.

Evidentiary burden

Section 14 of the Evidence Act, 1975 (Act 323) provides that

> ***except as otherwise provided by law, unless and until it is shifted a party has the burden of persuasion as to each fact the existence or non-existence of which is essential to the claim or defence he is asserting***.

In the case of Serwah v Kesse (1960) GLR 227, the Supreme Court stated that "***the general rule, of course, is that the onus probandi lies on the party who substantially asserts the affirmative of the issue***". They laid down the following tests for who bears this burden:

> "***The best tests for ascertaining on whom the burthen of proof lies are, to consider first which party would succeed if no evidence were given on either side; and, secondly, what would be the effect of striking out of the record the allegation to be proved. The onus lies on whichever party would fail, if either of these steps were pursued See Taylor on Evidence, s.365 quoted in Stroud, Judicial Dictionary (3rd. ed.) p. 1996."***

Accordingly, the plaintiff bears the burden of persuasion in this matter. Section 11(1) of Act 323 explains the burden of persuasion as ***the obligation of a party to introduce sufficient evidence to avoid a ruling against him on an issue***. This being a civil matter, the plaintiff is required to prove his case upon a preponderance of probabilities in accordance with section 12 of the Evidence Act 1975 (NRCD 323).

By way of evidence, both sides filed witness statements. However, after the trial had commenced and the 1st Defendant had cross-examined the Plaintiff, he failed to appear before the court for the witness statement he had filed on behalf of himself and 2nd Defendant to be adopted and for him to be cross-examined. The witness statement of the Defendants was therefore struck out.

The Plaintiff's testimony before this court is that he has worked as a lotto writer for the 1st Defendant, the official agent of the 2nd Defendant, for the past three years. The usual practice is that lotto writers submit their daily books to the agent no later than 7.15pm Monday to Friday each week as the draw is made at 7.15pm each day. The daily booklet comprises pages. Each page has attached to it two carbon copies making a set of three. The original page is always retained in the booklet for the use of the 2nd Defendant. The first duplicate is given out to the stake by the writer, and the second duplicate is retained by the writer. Each writer submits their booklets containing the original handwritten stakes to the agent. The writers also staple together the carbon copies they had retained and deposit those with the agent as well but these stapled carbon copies are kept separately from the booklet at the agent's office. The agent always collects the booklets from the writers in the presence of an official from the 2nd Defendant company. Once collected, the booklets are locked in a sack with a timed-padlock which at all material times is displayed as evidence for all to see that the booklets have been received and locked. The agent does not accept any submissions after 7.15pm. the locked sacks are transported to the Accra office of the 2nd Defendant by the official who was present at the time the agent was taking custody of the booklets. The draw is televised on UTV at 7.15pm every Monday to Friday so staters can confirm whether they have won by cross-checking the results of the draw against the numbers they staked. On the 18th June 2024, there was to be a double draw because the previous day, 17th June, 2024 had been a public holiday so no draw was conducted. On the said day, the Plaintiff arrived at the 1st Defendant's office to submit the booklets for both 17th June and 18th June. After handing over the booklets, the Plaintiff requested to be given back the booklet for 17th June as he had been asked by Stephen Osaabo to stake 60-71 for him. The 1st Defendant obliged and when the Plaintiff was done the booklet was taken back and deposited in same locked sack. The Plaintiff recorded wins by two of his customers at the end of the double

draw. Osaabo had won GHS12,000 and another person had won GHS240. The 1st Defendant paid the GHS240 to Plaintiff but pleaded to pay the GHS12000 the following day because the amount was a lot. Plaintiff agreed. The following day, however, the 1st Defendant did not pay the money. Instead, he informed the Plaintiff that 2nd Defendant wished to meet him and Osaabo. The meetings in Accra yielded no results and it became apparent that the Defendants simply did not want to pay the money. Along the line, the 1st Defendant offered to pay GHS5000 instead of the GHS12,000 but the Plaintiff rejected this offer. Osaabo subsequently grew impatient to the extent of physically attacking Plaintiff in his home and injuring him. The matter was reported to the Aburi Police and the 1st Defendant was invited as part of the investigations. The 1st Defendant admitted owing the Plaintiff and promised to pay the debt within two weeks but he failed to honour his promise.

The Plaintiff did not call any witnesses or adduce any documentary evidence.

The principle in the case of **Majolagbe v Larbi [1959] GLR 190** is that "*where a party makes an averment capable of proof in some positive way, e.g. by producing documents, description of things, reference to other facts, instances, or circumstances, and his averment is denied, he does not prove it by merely going into the witness-box and repeating that averment on oath*". In this case, however, the Plaintiff has testified that the documents he could have adduced are, by reason of the practice of the trade, in the custody of the defendants and the defendants have not disputed this. The Plaintiff has also testified that Osaabo attacked him in his home and the defendants have not disputed this either. I therefore think it would be unfair to hold it against the Plaintiff that he did not call Osaabo to testify in support of his case.

The Defendant cross-examined the Plaintiff and sought to impugn his testimony that he had staked Osaabo's lottery before 7.15pm. The Plaintiff however remained resolute that he acted before 7.15pm and pointed out that the 1st Defendant allowed him to add those numbers and in fact, ensured that he collected the money that had to be paid before adding the booklets back to the pile. I therefore find the Plaintiff's case that he staked Osaabo's numbers before 7.15pm more probable than the Defendant's case that he did not.

I note also that the 1st Defendant did not cross-examine the Plaintiff regarding his testimony that when they realised Osaabo had won GHS12,000, the 1st Defendant acknowledged that fact and requested Plaintiff to allow him to make the payment the following day. Defendant

also did not cross-examine the Plaintiff on his testimony that along the line he had offered to pay GHS5000 instead of the GHS12000 and neither did he cross-examine him on his testimony that at the Police Station, he had admitted owing the said sum and had promised to pay it in two weeks. The Court of Appeal in the case of **Quagraine v Adams [1981] GLR @599** held that where a party makes an averment and his opponent fails to cross examine on it, the opponent will be deemed to have acknowledged sub-silentio that averment by failure to cross-examine. Consequently, my conclusion is that the 1st Defendant has at all times agreed that he owes the Plaintiff GHS12,000.

In my considered opinion, the Defendants entered into a contract with Osaabo that should the numbers he had staked be mentioned as winning numbers, they would pay him a sum of money. Consideration in the form of the purchase price was paid by Osaabo to the Defendants through the Plaintiff, and for all intents and purposes, the contract was meant to be legally binding and enforceable. **Section 5 of the Contracts Act, 1960 (Act 25)** states that any provision in a contract which purports to confer a benefit on a person who is not a party to the contract, whether as a designated person or as a member of a class of persons, may be enforced or relied upon by that person as though he were a party to the contract. The Plaintiff is not a party to the contract between Defendants and Osaabo but per the terms of the said contract, he is entitled to GHS2,000 out of the GHS12,000 as his commission. He is therefore a beneficiary of the contract and consequently I am satisfied the Plaintiff has the requisite capacity to bring this action in accordance with section 5 of the Contracts Act.

On the basis of the evidence before me, I am satisfied that the defendants have breached their contract with Osaabo and that they are liable to pay the sum of GHS12,000, and I so hold. Judgment is hereby entered for the Plaintiff in the sum of GHS12,000 with interest at the prevailing commercial bank rate from 18th June 2024 till date of final payment. Cost of GHS3,000 is awarded against the Defendants in favour of the Plaintiff.

SGD.

H/W BIANCA GYAMERA-BEEKO